

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/9/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL 1804292

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: CHRISTINA YSABELLA MURILLO MORENO	
and	
RESPONDENT: JUAN JOSE MORENO, JR.	

NATURE OF PROCEEDINGS: REVIEW HEARING – CHILD CUSTODY/VISITATION

RULING

This Court entered a Findings and Order after Hearing (FOAH) on July 28, 2025. Under the terms of FOAH, the parents—Juan Moreno (Father) and Christina Murillo (Mother)—agreed to a framework relating to visitation and school selection for their shared son Juan (DOB 11/07/2017). The FOAH further provided that the parents were to contact Marin Family Court Services (FCS) in May 2026, to review school preferences and evaluate the visitation conditions and terms agreed to by the parties and ordered by this Court.

The parents complied with this direction in the FOAH and FCS has conducted further mediation with the parties, as reflected in FCS’s report of June 11, 2026. In addition, FCS interviewed the parties’ son, Juan.

Under the terms of this Court’s previous FOAH, during the school year Juan is in Mother’s custody on the first, third, and fifth weekends of the month from Friday after school through Sunday evening. Commencing Summer 2026, Juan shall be in the custody of Mother for the summer, returning one week before school starts. During the summer, Father has custody on alternate weekends and for one two-week vacation.

As to the question of school choice, both parents now live in Sonoma County. The school choice issue, however, remains in dispute as Father would like Juan to continue attending Hamilton Elementary in Novato while Mother would like Juan to attend her neighborhood school in the Santa Rosa school district (Luther Burbank).

As a threshold matter, as neither parent resides in Marin County, venue for this matter needs to be transferred to Sonoma County where both parents reside following the 6/25/26 hearing in Marin. Mother reports that she has filed in Sonoma County to transfer their case, and a hearing has been scheduled for 8/27/26 in Sonoma Family Court.

As to the question of school selection, the Court finds good cause, based on a review of the materials submitted, and that it is in the best interest of the child that Juan attend Luther Burbank Elementary in Mother's school district beginning school year 2026 – 2027. As Mother is available to provide care and individual attention to Juan, the Court further orders Juan to be in Mother's custody during the school week.

As reflected in the FCS report, the quality of communication between the parties is constructive and positive. The texts submitted by Mother showing communications between her, Father, and Juan's stepmother show respectful and friendly coparenting communications between the adults in Juan's life. That bodes well for continued and healthy coparenting which as the parties transition to a shared custody schedule now that Mother has moved closer to Father's home. The Court adopts the recommendations of the FCS report, as modified, as follows: All prior orders not in conflict with the below shall remain in effect with the following modifications.

1. Venue for this matter shall be transferred to Sonoma County where both parents reside. Custody orders issued following the 6/25/26 hearing in Marin County shall be lodged with Sonoma County Family Court. All future custody filings shall be filed in Sonoma County.
2. Joint legal custody.
3. Joint physical custody.
4. Unless otherwise agreed to between the parents, commencing school year 2026 – 2027, Juan shall attend school at Luther Burbank in Sonoma County.
5. Parental Timeshare:
 - a. During the school year, Juan shall be in Mother's custody during the school week and alternate weekends. Father shall have custody on alternate weekends from Friday after school through noon on Sunday. If Father is not working on Sunday, Jr. shall remain in his custody until Monday morning drop off at school. If Father is not working on Fridays, he shall have custody on Fridays from after school through 9 AM Saturday morning in the weeks opposite his alternate weekends.
 - b. Summers: In addition to the schedule that is in place during the school year, Father may have additional custody time during the weekdays in the summers when he is not working.
6. There shall be no corporal punishment of Juan.
7. Parents may modify the timeshare at any time per mutual parental agreement.

As authorized by CRC Rule 5.125, the Court shall prepare the Findings and Order After Hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/6/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL 1900469

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: MICHAEL WOLF

and

RESPONDENT: LAURA PUCCI

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – TERMINATE DVRO

RULING

This matter is before the Court on Respondent/Mother's May 11, 2026, *ex-parte* Request for Order to modify custody and visitation regarding the parties' child Bodhi (DOB: 01/20/2018). Mother also requests to terminate the 3-year DVRO that was issued on August 22, 2024.

Procedural History

The *ex parte* application was heard on May 11, 2026, where Mother's request was denied and set for hearing on May 19, 2026, in order to set a hearing schedule. On May 19, 2026, the matter was continued to July 9, 2026, with all existing orders in effect and the parties referred to Marin Family Court Services for mediation, counseling and recommendations.

This case has a detailed and complicated procedural history. There are at least two orders that are at the center of Mother's request: (1) the Findings and Order After Hearing dated May 15, 2025, and (2) the Domestic Violence Restraining Order dated August 22, 2024.

At a hearing on May 15, 2025, the Court confirmed that Father was granted sole legal and physical custody of the parties' child and was allowed to relocate to Mexico. The order followed an evidentiary hearing on March 26, 2025, that involved testimony from both parties and an additional six witnesses. The Court found that Mother did not meet her burden of proving that Bodhi's moving to Mexico would be detrimental to the child.

The restraining order that issued by this Court on August 22, 2024, is for a period of three years and grants Father sole legal and physical custody of Bodhi with supervised visits to Mother.

Discussion